
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 153 (S.326). An act relating to miscellaneous amendments to laws relating to motor vehicles

Subjects: Motor vehicles; penalties; registration; license plates; Department of Motor Vehicles; Department of Taxes; snowmobiles; operator's licenses; Smugglers' Notch; commercial driver's licenses; nondriver identification cards; diesel fuel tax; learner's permits; prohibited vehicles; abandoned motor vehicles; salvage titles; electronic signatures; duplicate titles; annual inspections; motorcycle exhaust; personal electronic device use; kei vehicles; limited use specialty vehicles; motorboats; validation stickers; personal flotation devices

This act clarifies that an individual cannot have both a nondriver ID and operator's license at the same time. This act extends the statute permitting the Commissioner of Motor Vehicles to suspend an operator's license or vehicle registration if a check is returned for insufficient funds to apply to electronic transactions, as well. This act also repeals the statute permitting the Department of Motor Vehicles to electronically issue temporary registrations and registration plates.

This act permits the Department of Motor Vehicles to accept electronic signatures on certain documents needed to provide a salvage title to an insurer after a vehicle is declared a total loss. This act also permits the Department of Motor Vehicles to hand deliver duplicate titles for certain vehicles to individuals at a Department location. This act updates various definitions to clarify that kei vehicles may be registered and operated in Vermont. This act also establishes a new category of limited use specialty vehicles, which may be registered and operated in Vermont subject to certain limitations.

This act requires the Department of Motor Vehicles to amend the inspection manual provisions related to safety inspections to improve clarity and consistency and limit failures to vehicle conditions that constitute an immediate safety risk. This act also establishes requirements for motorcycle exhausts and provides that motorcycles whose exhausts do not meet those requirements shall fail inspection.

This act permits the Department of Taxes to share with the Agency of Transportation tax information related to taxes generated on the premises of airports for purposes of demonstrating compliance with Federal Aviation Administration grant funding requirements.

This act increases the reimbursement for towing abandoned vehicles from public property to \$250.00 and permits the Agency of Transportation to be reimbursed for towing costs. This act also requires the Department of Motor Vehicles to maintain a database of abandoned motor vehicles on its website.

This act increases the penalty for operating an oversize vehicle in Smugglers' Notch to \$10,000.00 and for a vehicle that substantially impedes the flow of traffic through Smugglers' Notch to \$20,000.00, and requires the Agency of Transportation to update

signage warning oversize vehicles of the penalties for entering the Notch. This bill also increases the penalty for operating a snowmobile without valid registration or a trail maintenance assessment decal to \$450.00. This act also prohibits the modification of numerals, letters, or the background on a license plate and prohibits covering a license plate.

This act permits State and municipal employees without a commercial driver's license to operate heavy trucks in certain emergencies declared by the Governor. This bill also establishes a \$40.00 fee for a one-year nondomiciled commercial driver's license. This bill also updates statutes governing when an individual operating a commercial motor vehicle is not permitted to use a portable electronic device or text, as well as establishing exceptions for the hands-free use of a portable electronic device and the use of GPS.

This act requires motorboat validation stickers to be placed within six inches of the registration number on a motorboat. This act also requires individuals to wear a personal flotation device on certain vessels between November 1 and April 30, except when hunting and bow fishing in less than three feet of water and requires the Department of Public Safety to create public educational materials regarding the new requirement.

Effective Date: July 1, 2026